

Transparency in Online User Agreements

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A 2017 study showed that most people (91%) routinely accept online agreements without actually reading them [1].

1. What about you? Do you regularly read online agreements prior to clicking “agree”? If not, why not? If you, yourself, do read them, why do you think that others avoid reading them? Give at least three reasons.

One reason that you might have listed is that they are too long and complex. This is not your imagination. Consider the Instagram end user license agreement (EULA). When the EULA was analyzed by software that ranks a document for complexity, the results indicated that the agreement was written at the level of understanding for a second year college student. Yet, the expected user population of Instagram is ages 13 and above.

2. Check this out for yourself. Find a user agreement for a web or app-based product (other than Instagram) and copy it. Then paste it into the textbox of the tool found at the following url and click “Check text Readability”:

- <https://readabilityformulas.com/freetests/six-readability-formulas.php>

- a. What EULA did you analyze?
- b. You will see results from several tools. Record a summary of the average grade level, reading age, and text difficulty of the agreement that you analyzed.

User agreements that are too complex can violate the virtue of transparency. If you have studied the Virtue Ethics ethical framework in the past, you know that the ethicality of a situation or decision is judged by the virtues that it either conflicts with or upholds.

Assume that you are working as a software engineer and have just seen the EULA for a product that you are working on. You believe that it is too complex and therefore unethical. You make the case to your supervisor on the basis that it conflicts with the virtue of transparency. The supervisor’s response is that the legal team does not see transparency as a virtue — they see protecting their company as a virtue. So much for the Virtue Ethics argument. Furthermore, there is no rule in the company against using fancy language. So much for an argument from the deontology (rules-based) framework! That leaves you with two ethical frameworks with which you are familiar to argue your point. Recall the two frameworks that remain:

- Analogies: Arguing the ethicality of a situation based on a similar situation where the ethicality of the similar situation was widely accepted.
 - Utilitarianism: Arguing the ethicality of a situation based on what is best for the majority.
3. Which framework would you choose and how would you use it? What would your argument be that the user agreement is unethical?

Regardless of what you choose, the company still needs to be protected. User Agreements were put into place in part to protect the company. In recent years, people have suggested ways to make more user-friendly agreements. These include:

- Include an executive summary
 - Include a table of contents with links to the various user-agreement features
 - Write the agreement in plain English instead of legalese
 - Include an FAQ page
4. Choose one of the suggestions above (or another of your own) and list at least one positive and one negative to that approach.

Peer Review Assignment for online Transparency Lab

Now compare your answers above to the answers of one of your classmates. Make sure that they chose a different EULA from yours.

1. What EULA did your peer analyze?
2. How did the results of that analysis compare to yours? Was this EULA more or less complex? Provide numbers for comparison.
3. What ethical framework did your peer choose to argue that the complex user agreement in question was unethical?
4. Comment on the strength of their argument. Would it convince you? Why or why not?
5. What suggestion for the increased user-friendliness of EULAs did your peer reflect upon? Do you think that the positive that they listed for that suggestion would be a compelling argument for using it? Why or why not?

References

Bibliography

- [1] A. Samuel, "A Solution to Unreadable Online User Agreements."